

STATE OF NEW YORK

318--A

Cal. No. 262

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. CRUZ, ZACCARO, WEPRIN -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the penal law and the civil rights law, in relation to prohibiting speech-based defenses to actions brought against an individual for the unlawful dissemination or publication of an intimate image

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 245.15 of the penal law is amended by adding a new
2 subdivision 5 to read as follows:

3 5. It shall not be a defense to any criminal action brought against an
4 individual pursuant to this section that such dissemination or publica-
5 tion of an intimate image is protected by a right to free speech, where
6 the prosecution has established beyond a reasonable doubt that, at the
7 time of dissemination, the defendant knew or should have known that the
8 subject of the image had a reasonable expectation of privacy and did not
9 consent to the release of such image.

10 § 2. Section 52-b of the civil rights law is amended by adding a new
11 subdivision 6-a to read as follows:

12 6-a. It shall not be a defense to any civil action brought against an
13 individual pursuant to this section that such dissemination or publica-
14 tion of an intimate image is protected by a right to free speech, where
15 the plaintiff has established by a preponderance of the evidence that,
16 at the time of dissemination, the defendant knew or should have known
17 that the subject of the image had a reasonable expectation of privacy
18 and did not consent to the release of such image.

19 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD01205-02-6